

An Act

ENROLLED HOUSE
BILL NO. 3718

By: Caldwell (Chad) and
Crosswhite Hader of the
House

and

Daniels of the Senate

An Act relating to special education; amending 70 O.S. 2021, Section 13-101.2, as last amended by Section 1, Chapter 246, O.S.L. 2025 (70 O.S. Supp. 2025, Section 13-101.2), which relates to the Lindsey Nicole Henry Scholarships for Students with Disabilities Program; requiring school districts to schedule certain meeting within certain time period following a request for a special education evaluation; requiring school districts to complete certain evaluation and make certain determination within certain time period; providing exception; directing certain student to be deemed eligible for certain scholarship if certain determination is not made within certain time period; providing for calculation of scholarship; providing for remaining scholarship amount; and providing an effective date.

SUBJECT: Special education

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 13-101.2, as last amended by Section 1, Chapter 246, O.S.L. 2025 (70 O.S. Supp. 2025, Section 13-101.2), is amended to read as follows:

Section 13-101.2. A. There is hereby created the Lindsey Nicole Henry Scholarships for Students with Disabilities Program. The Lindsey Nicole Henry Scholarships for Students with Disabilities Program is established to provide a scholarship to a private school of choice for students with special needs who meet at least one of the criteria of subparagraph a, b, c, d, e, f, or g of paragraph 1

of subsection B of this section. Scholarships shall be awarded beginning with the 2010-2011 school year.

B. The parent or legal guardian of a student with a special need may exercise his or her parental option and request to have a Lindsey Nicole Henry Scholarship awarded for the child to enroll in and attend a private school in accordance with this section and the scholarship shall be awarded if:

1. a. the student has an individualized education program (IEP), an individualized service plan (ISP), or meets the eligibility standards for special education services in accordance with the Individuals with Disabilities Education Act (IDEA),
- b. the student has had an individualized service plan pursuant to Section 1-4-704 of Title 10A of the Oklahoma Statutes any time prior to notifying the State Department of Education of the intent to participate in the program,
- c. the student is a child of a member of the United States Armed Forces who transfers to a school in this state from out of state or from a foreign country pursuant to a permanent change of station orders of the parent,
- d. the student was in out-of-home placement with the Department of Human Services,
- e. the student was adopted while in the permanent custody of the Department of Human Services,
- f. the student is enrolling or is enrolled in a school that exclusively serves students experiencing homelessness, or
- g. the student was in out-of-home placement with the Office of Juvenile Affairs; and

2. The parent or legal guardian has obtained acceptance for admission of the student to a private school that is eligible for the program as provided in subsection ~~H~~ I of this section and has notified the State Department of Education of the request for a scholarship. Requests to participate in the program made after

December 1 shall be granted, but funding for scholarships requested after December 1 shall not be available until the beginning of the next school year. The request shall be through a communication directly to the Department in a manner that creates a written or electronic record of the request and the date of receipt of the request. The Department shall notify the school district in which the student is enrolled, if applicable, upon receipt of the request. For purposes of continuity of educational choice, the scholarship shall remain in force until the student enrolls in a public school, graduates from high school, or reaches the age of twenty-two (22), whichever occurs first. At any time, the parent or legal guardian of the student may remove the student from the private school and place the student in another private school that is eligible for the program as provided in subsection ~~H~~ I of this section or place the student in a public school.

- C. 1. a. Within fifteen (15) school days after receipt of a written request from a parent or legal guardian for a special education evaluation, a school district shall schedule a meeting to review existing data with a parent or legal guardian.
- b. The school district shall complete the evaluation and make an eligibility determination within forty-five (45) school days after the date the school district receives the signed special education evaluation consent form, except when federal law provides an exception to the forty-five-school-day period.
- c. If the school district fails to make an eligibility determination within the applicable forty-five-school-day period established under this subsection, the student shall be deemed eligible for purposes of receiving a Lindsey Nicole Henry Scholarship.

2. The maximum scholarship granted for a student found eligible under this subsection shall be a calculated amount equivalent to the total State Aid factors for the applicable school year multiplied by the grade weight for which the student is eligible for the applicable school year.

3. Once a school district reaches an eligibility decision and determines that the student is eligible for special education services, the student shall receive the remaining maximum

scholarship amount allowed under paragraphs 2 and 3 of subsection K of this section.

D. A student shall be eligible for a scholarship if the parent or legal guardian of the student made a request for a scholarship for the 2010-2011 school year and the student transferred to an eligible private school but was subsequently denied a scholarship because the student did not have an IEP in effect on October 1, 2009, but did meet all other eligibility requirements as set forth in the Lindsey Nicole Henry Scholarships for Students with Disabilities Program Act.

~~D.~~ E. A student shall not be eligible for a Lindsey Nicole Henry Scholarship if the student is not having regular and direct contact with the private school teachers at the physical location of the private school.

~~E.~~ F. School districts shall notify the parent or legal guardian of a public school student with a special need of all options available pursuant to this section and inform the parent or legal guardian of the availability of information about the program from the State Department of Education through the toll-free telephone number or website. The notification shall be provided with or included in the copy of the "Parents Rights in Special Education: Notice of Procedural Safeguards" document given to parents at least annually or as otherwise required by law.

~~F.~~ G. Upon acceptance of a Lindsey Nicole Henry Scholarship, the parent or legal guardian shall assume full financial responsibility for the education of the student including, but not limited to, transportation to and from the private school.

~~G.~~ H. If the parent or legal guardian requests a Lindsey Nicole Henry Scholarship and the student is accepted by the private school pending the availability of a space for the student, the parent or legal guardian of the student shall notify the State Department of Education before entering the private school and before December 1 in order to be eligible for the scholarship during the school year when a space becomes available for the student in the private school. If notification is made after December 1, payment of the scholarship shall not begin until the next school year.

~~H.~~ I. 1. To be eligible to participate in the Lindsey Nicole Henry Scholarships for Students with Disabilities Program, a private school shall notify the State Department of Education of its intent

to participate. The notice shall specify the grade levels and services that the private school has available for students with special needs who are participating in the scholarship program. The State Department of Education shall approve a private school as eligible to participate in the scholarship program upon determination that the private school:

- a. meets the accreditation requirements set by the State Board of Education or another accrediting association approved by the State Board of Education. The State Department of Education shall list on its website all accrediting associations approved by the Board,
- b. demonstrates fiscal soundness by having been in operation for one (1) school year or providing the State Department of Education with a statement by a certified public accountant confirming that the private school desiring to participate is insured and the owner or owners have sufficient capital or credit to operate the school for the upcoming year by serving the number of students anticipated with expected revenues from tuition and other sources that may be reasonably expected. In lieu of a statement, a surety bond or letter of credit for the amount equal to the scholarship funds for any quarter may be filed with the Department,
- c. complies with the antidiscrimination provisions of 42 U.S.C., Section 2000d,
- d. meets state and local health and safety laws and codes,
- e. will be academically accountable to the parent or legal guardian for meeting the educational needs of the student,
- f. employs or contracts with teachers who hold baccalaureate or higher degrees, or have at least three (3) years of teaching experience in public or private schools, or have special skills, knowledge, or expertise that qualifies them to provide instruction in subjects taught,

- g. complies with all state laws relating to general regulation of private schools, and
- h. adheres to the tenets of its published disciplinary procedures prior to the expulsion of a scholarship student.

2. Upon approval of a private school, the State Department of Education shall provide on its website all information and material submitted by the private school with its application.

~~I.~~ J. 1. Lindsey Nicole Henry Scholarship Program participants shall comply with the following:

- a. the parent or legal guardian shall select the private school from the schools approved for eligibility pursuant to subsection ~~H~~ I of this section and apply for the admission of the child,
- b. the parent or legal guardian shall request the scholarship no later than December 1 of the school year during which the scholarship is requested,
- c. any student participating in the scholarship program shall attend throughout the school year, unless excused by the school for illness or other good cause, and shall comply fully with the code of conduct for the school,
- d. the parent or legal guardian of a student who qualifies pursuant to subparagraph a of paragraph 1 of subsection B of this section shall agree to meet annually with a representative of the private school to identify the services necessary to support the special needs of the student participating in the scholarship program,
- e. the parent or legal guardian shall fully comply with the parental involvement requirements of the private school, unless excused by the school for illness or other good cause, and
- f. upon issuance of a scholarship warrant, the parent or legal guardian to whom the warrant is made shall restrictively endorse the warrant to the private

school for deposit into the account of the private school. The parent or legal guardian may not designate any entity or individual associated with the private school as the attorney in fact for the parent or legal guardian to endorse a warrant. A parent or legal guardian who fails to comply with this subparagraph shall forfeit the scholarship.

2. A participant who fails to comply with this subsection forfeits the scholarship.

~~J.~~ K. Provisions governing payment of a Lindsey Nicole Henry Scholarship shall be as follows:

1. The State Department of Education shall calculate the total cost of all scholarships for all eligible students in the state. The State Department of Education shall then reserve or retain from the total amount appropriated to the State Board of Education for State Aid purposes and any other revenue available for allocation for State Aid purposes the total cost for all scholarship payments;

2. The maximum scholarship granted for an eligible student with special needs shall be a calculated amount equivalent to the total State Aid factors for the applicable school year multiplied by the grade and disability weights for which the student is eligible for the applicable school year. The disability weights used in calculating the scholarship amount shall include all disability weights which correspond to the disabilities included in the multidisciplinary evaluation and eligibility group summary for the student at the time the request for a scholarship is made by the parent or legal guardian. The maximum scholarship amount shall be calculated by the State Board of Education for each year the student is participating in the scholarship program;

3. The amount of the scholarship shall be the amount calculated in paragraph 2 of this subsection or the amount of tuition and fees for the private school, whichever is less, minus up to two and one-half percent (2 1/2%) of the scholarship amount which may be retained by the State Department of Education as a fee for administrative services rendered. If a private school does not charge tuition, the amount of the scholarship shall be the amount calculated in paragraph 2 of this subsection minus up to two and one-half percent (2 1/2%) of the scholarship amount which may be retained by the State Department of Education as a fee for administrative services rendered. The amount of any assessment fee

required by the private school and the amount associated with providing services and therapies to address the special needs of the student may be paid from the total amount of the scholarship. The amount of the scholarship shall be prorated to reflect the number of days remaining in the current school year, if the scholarship request is granted after the beginning of the school year;

4. The State Department of Education shall notify the private school of the amount of the scholarship within ten (10) days after receiving the request for a scholarship, when the total State Aid factors have been determined for the current fiscal year. The initial payment shall be made after the Department verifies admission acceptance and enrollment. Quarterly payments shall be made upon verification of continued enrollment and attendance at the private school. Payment shall be made by the Department with an individual warrant made payable to the parent or legal guardian of the student and mailed by the Department to the private school that the parent or legal guardian chooses. The parent or legal guardian shall restrictively endorse the warrant to the private school for deposit into the account of the private school;

5. The State Department of Education shall not be responsible for any additional costs associated with special education and related services incurred by the private school for the student including the cost of teachers, equipment, material, and special costs associated with the special education class;

6. The State Department of Education shall establish a toll-free telephone number or website that provides parents or legal guardians and private schools with information about the program;

7. The State Department of Education shall require an annual, notarized, sworn compliance statement by participating private schools certifying compliance with state laws and shall retain all records received from a participating private school. The State Department of Education shall post on its website the annual compliance statement for each participating private school; and

8. The State Department of Education shall cross-check the list of participating scholarship students with the public school enrollments prior to each scholarship payment to avoid duplication.

~~K.~~ L. 1. The State Superintendent of Public Instruction shall deny, suspend, or revoke the participation of a private school in the scholarship program if it is determined that the private school

has failed to comply with the provisions of this section. However, in instances in which the noncompliance is correctable within a reasonable amount of time and in which the health, safety, or welfare of the students is not threatened, the Superintendent may issue a notice of noncompliance which shall provide the private school with a time frame within which to provide evidence of compliance prior to taking action to suspend or revoke participation in the scholarship program.

2. If the Superintendent intends to deny, suspend, or revoke the participation of a private school in the scholarship program, the Department shall notify the private school of the proposed action in writing by certified mail and regular mail to the private school's address of record with the Department. The Department shall also notify any parents or legal guardians of scholarship students attending the private school. The notification shall include the reasons for the proposed action and notice of the timelines and procedures set forth in this subsection.

3. The private school that is adversely affected by the proposed action shall have fifteen (15) days from receipt of the notice of proposed action to file with the Department a request for an administrative hearing proceeding pursuant to the Administrative Procedures Act.

4. Upon receipt of a request for a hearing, the State Board of Education shall commence a hearing within sixty (60) days after the receipt of the formal written request and enter an order within thirty (30) days after the hearing.

5. The Board may immediately suspend payment of scholarship funds if it is determined that there is probable cause to believe that there is an imminent threat to the health, safety, or welfare of the students or fraudulent activity on the part of the private school.

~~H.~~ M. No liability shall arise on the part of the state, the State Board of Education, the State Department of Education, or a school district based on the award or use of any scholarship provided through the Lindsey Nicole Henry Scholarships for Students with Disabilities Program.

~~M.~~ N. The inclusion of private schools within options available to public school students in Oklahoma shall not expand the regulatory authority of the state or any school district to impose

any additional regulation of private schools beyond those reasonably necessary to enforce the requirements expressly set forth in this section.

~~N.~~ O. If the State Department of Education determines that a school district prior to August 26, 2011, has failed to comply with the provisions of the Lindsey Nicole Henry Scholarships for Students with Disabilities Program Act and has failed to make full or partial scholarship payments for eligible students, the Department shall have authority to reduce the amount of State Aid allocated to the school district or require the school district to make repayment to the Department of State Aid allocations in an amount equal to the amount of scholarship payments the school district failed to make. The Department shall make payment to the parent or legal guardian in the amount the school district failed to make in the manner as provided for in subsection ~~J~~ K of this section.

~~O.~~ P. The State Department of Education shall annually prepare and post on its website a report of Lindsey Nicole Henry Scholarships for Students with Disabilities Program. The annual report shall include, but not be limited to, the following information:

1. The total number and amount of scholarships awarded and reported for each participating private school;
2. The total number of scholarships denied;
3. The total number and amount of scholarship payments suspended for each participating private school; and
4. Data on participating students, disaggregated by years of participation in the program, grade level, economically disadvantaged status, racial and ethnic groups, and disability category.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____